

23STCV14061 23STCV14061

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-08-20
Source URL:
https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C506%2C08%2F20%2F2026
Source SHA-256: 697bc39f25826f2f77a86367c6e7031173f2fdf9002b936b9538e545a953fb74

Case Number: 23STCV14061 Hearing Date: August 20, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

ROSA LOPEZ,

Plaintiff,

vs.

DEWA ENTERPRISES, INC.,

Defendant.

)

)

)

)

)

)

)

)

)

)

)

CASE NO.: 23STCV14061

[TENTATIVE] ORDER GRANTING MOTION FOR SUMMARY
JUDGMENT

Dept. 506

8:30 a.m.

August 20, 2026

On June 20, 2023, Plaintiff Rosa
Lopez filed this slip-and-fall action against Defendant Dewa Enterprises Inc.

On
September 3, 2024, Defendant filed a motion for summary judgment, or in the alternative,
summary adjudication.

The
Court STRIKES Defendant's unauthorized August 10, 2026 "Response to Evidentiary
Objections" and responsive separate statement
(See Code Civ. Proc., § 437c, subd. (b)(4) ["The reply shall not include
any new evidentiary matter, additional material facts, or separate statement submitted
with the reply and not presented in the moving papers or opposing papers."].)

EVIDENTIARY
OBJECTIONS

Plaintiff's
and Defendant's evidentiary objections are overruled.

BACKGROUND

FACTS

Plaintiff's

alleged slip and fall occurred on June 20, 2021, in the covered outdoor patio area in the front of a laundromat. (Undisputed Material Facts "UMF" 1-3.) At the time of the incident, there were no items on the floor, such as a rug, paper towels, dirt, mud, trash, rubble, or debris. (UMF 7.) The floor was unbroken and free from any gaps or cracks that could have caused Plaintiff's fall. (UMF 12.) After standing up from her seat, Plaintiff looked down at the floor before taking a step forward. (UMF 13.) Plaintiff admitted she did not see anything on the floor that could have caused her to slip. (UMF 14.) Plaintiff was wearing open-toed sandals. (UMF 10.) Immediately prior to her fall, Plaintiff dragged her toes on her right foot as she stepped. (UMF 15; see UMF 16.)

Defendant's

expert inspected the subject property and did not find anything that could or would have caused Plaintiff to slip. (UMF 19; see UMF 20-23.) Expert biomechanical analysis shows that Plaintiff's fall was not consistent with the mechanics of a slip and fall; Plaintiff fell because of the way she dragged her toes and landed awkwardly, not because of any alleged slipperiness or hazardous condition of the flooring surface. (UMF 26.)

DISCUSSION

For

each claim in the complaint, the defendant moving for adjudication must satisfy the initial burden of proof by showing that one or more elements of a cause of action cannot be established or that there is a complete defense to a cause of action. (Code Civ. Proc., § 437c, subd. (p)(2); *Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1520 (Scalf).) Then the burden shifts to the plaintiff to show that a triable issue of material fact exists as to that cause of action or a defense. (Code Civ. Proc., § 437c, subd. (p)(2); *Scalf*, supra, 128 Cal.App.4th at p. 1520.) To establish a triable issue of material fact, the party opposing the motion must produce "substantial responsive evidence." (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 162-163 (Sangster).)

Plaintiff

alleges premises liability and general negligence. A cause of action for negligence requires (1) a legal duty owed to the plaintiff to use due care, (2) breach of that duty, (3) causation, and (4) damage to the plaintiff.

(County of Santa Clara v. Atlantic Richfield Co. (2006) 137 Cal. App.

4th 292, 318.) The elements of a negligence

claim and a premises liability claim are the same. (Kesner v. Superior Court (2016) 1 Cal.5th 1132, 1158.)

Defendant

argues that Plaintiff cannot show any breach of duty by Defendant, Defendant's notice of a dangerous condition, or causation. (Motion at pp. 9-17.)

There

were no items on the floor, and the floor was unbroken and free from any gaps or cracks. (UMF 7, 12.) Plaintiff admitted she did not see anything on the floor that could have caused her to slip.

(UMF 14.) Before she fell, Plaintiff

looked down at the floor and dragged her toes on her right foot as she stepped. (UMF 13, 15; see UMF 16.) Defendant's expert did not find anything that

could or would have caused Plaintiff to slip, and expert biomechanical analysis shows that Plaintiff's fall was not consistent with the mechanics of a slip and fall. (UMF 19, 26; see UMF 20-23.) Defendant has met its initial burden.

Plaintiff

argues that the floor was wet, the liquid was visible after the fall, and her right foot slipped and twisted. (Opposition at p. 5.) According to Plaintiff, "Defendant treats the video as though it were conclusive scientific proof that the floor was dry. It is not. The moving papers identify no camera specifications, resolution, frame rate, distance, lighting conditions, compression history, or testing establishing that the camera could reveal a thin, translucent, or yellowish liquid on the patio surface." (Ibid.)

Plaintiff

testified that there was liquid on the floor that was "[b]etween yellow and white" in color. (Motion, Ex. A at p. 26 [Plaintiff's Deposition]; see id. at p. 31 ["The liquid that I fell on was yellow."].) But the video clearly shows that there was no yellow or white liquid on the floor. The individual to assisted Plaintiff after her fall and helped her stand up also stood

on the same tile where Plaintiff's foot dragged; they did not slip at all and did not track any liquid when they walked away.

Plaintiff's speculation—contradicted by video evidence—is insufficient. “The plaintiff must introduce evidence which affords a reasonable basis for the conclusion that it is more likely than not that the conduct of the defendant was a cause in fact of the result. A mere possibility of such causation is not enough” (Ortega v. Kmart Corp. (2001) 26 Cal.4th 1200, 1205.)

Plaintiff has failed to produce “substantial responsive evidence” to create a triable issue of material fact. (Sangster, supra, 68 Cal.App.4th at pp. 162-163.)

CONCLUSION

The motion is GRANTED. Defendant is ordered to file a proposed form of judgment within five days.

A Non-Appearance Case Review Re: Submission of Proposed Judgment is scheduled for September 2, 2026 at 9:00 a.m.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 20th day of August 2026

Hon. Thomas D. Long

Judge of the Superior
Court